

		those who are grossly careless of their own affairs.” (<i>See, Elm</i>, at 513.) Another ground for discretionary relief is mistake. Mistake, within the context of CCP section 473, can be a mistake of fact or a mistake of law. An example of a mistake of fact is when an attorney erroneously thought only one of two defendants he was employed to defend had been served. (<i>See, Lieberman v. Aetna Ins. Co.</i> (1967) 249 Cal.App.2d 515, 523-524.) A mistake of law must be on a legal problem where the issue is complex and debatable, a simple mistake of law is not a basis for relief. (<i>See, Standard Microsystems Corp. v. Winbond Electronics Corp.</i> (2009) 179 Cal.App.4th 868, 879.) Next, is the ground of surprise. In <i>State Farm Fire & Casualty Co. v. Pietak</i> (2001) 90 Cal.App.4th 600, the court noted that “surprise” means some condition or situation in which a party is unexpectedly injured, without any default or negligence of his own, which ordinary prudence could not have guarded against. (<i>Id.</i>, at 611, citing <i>Credit Managers Assn. v. National Independent Business Alliance</i> (1984) 162 Cal.App.3d 1166, 1173.) Finally, excusable neglect means that “... the acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” (<i>See, Jackson v. Bank of America</i> (1983) 141 Cal.App.3d 55, 58.) Defendant showed relief should be granted due to Defendant’s excusable neglect. (Motion, 7:23-8:6 and 8:23-10:7; Boyle Decl., ROA No. 26, ¶¶ 1-4 and 6.) In addition, Defendant’s attorney submitted an affidavit of fault. (Hagerty Decl., ROA No. 28, ¶¶ 1-10, 12, and 13.) Defendant timely filed this motion. Defendant submitted a copy of Defendant’s proposed answer in support of this motion. (Hagerty Decl., ROA No. 28, ¶ 10, Exhibit A.) Accordingly, Defendant’s unopposed motion is granted. Defendant shall serve and file the proposed answer attached as Exhibit A to Hagerty’s declaration within 10 days. Defendant shall give notice.
2.	2024-1374052 JMAN Coastal LLC vs. Six Lanterns Homeowners Association	Plaintiff JMAN Coastal LLC’s motion to compel defendant Six Lanterns Homeowners Association (the “HOA” or “Defendant”) to provide further responses to form interrogatories, set two, no. 17.1 is denied in part and granted in part. It is denied as to 17.1 responses for RFA nos. 36, 39, and 8. It is granted as to responses to RFA nos.

42, 43, 44: further verified responses consistent with the court's order are to be served within 20 days of notice of this ruling.

No sanctions are awarded.

Legal Standard

Each answer in the response to an interrogatory must be "as *complete* and *straightforward* as the information reasonably available to the responding party permits. If an interrogatory cannot be answered completely, it shall be answered to the extent possible." Code Civ. Proc. § 2030.220(a), (b) (emphasis added). "Parties must state the truth, the whole truth, and nothing but the truth in answering written interrogatories." *Scheidt v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 76 (internal quotes omitted); *see also* Code Civ. Proc. § 2023.010(f) (evasive response is ground for *sanctions*).

Where the question is specific and explicit, an answer that supplies only a portion of the information sought is improper. It is also improper to provide "deftly worded conclusionary answers designed to evade a series of explicit questions." *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.

A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. (*Hunter v. International Systems & Controls Corp.*, *supra*, 56 F.R.D. 617, 625). Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response. (See C.E.B., *California Civil Discovery Practice*, Section 8.54 (C.E.B.1975).)

Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783.

"If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, *but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.*" Code Civ. Proc. § 2030.220(c) (emphasis added); *Regency Health Services, Inc. v. Superior Court* (1998) 64 CA4th 1496, 1504. In answering interrogatories, a party must furnish information available from sources under the party's control: "[A party] cannot plead ignorance to information which can be obtained from sources under his control." *Deyo v. Kilbourne*, *supra*, 84 Cal.App.3d at 782; *Regency Health Services, Inc. v. Superior Court*, *supra*, 64 Cal.App.4th at 1504.

A party may move to compel further responses to interrogatories on the grounds that the answer is evasive or incomplete. Code Civ. Proc. § 2030.300(a)(1). Prior to filing such a motion, the moving party must meet and confer with the responding party in a reasonable and good faith attempt to informally resolve each issue that would be presented by the motion. Code Civ. Proc. § 2030.300(b); § 2016.040. In the absence of agreement extending the time to file, a motion to compel further responses must be filed no more than 45 days (+ time for service by mail, email, etc.) after the verified responses, or verified supplemental responses, are served. Code Civ. Proc. §§ 2030.300(c), 2016.50.

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal. 4th 245, 255.) Monetary sanctions are available on such a motion. Code Civ. Proc. §2030.300(d).

Discussion

In its motion, Plaintiff disputes the validity of the objections set out in subsection (b) for each of the RFAs. But these are not objections to the interrogatory, these are objections to the RFA that are reiterated at 17.1(b) as part of the explanation why Defendant's response to the RFA was not an unqualified admission. The merit of those objections should be addressed, if at all, on a motion to compel further responses to the RFAs.

Beyond the objections, Plaintiff disputes the sufficiency of Defendant's response because it is not, Plaintiff contends, it is not complete and straightforward and does not reflect a reasonable investigation.

Plaintiff also argues that the information provided in Defendant's responses is insufficient because it is provided on "information and belief" rather than firsthand knowledge. But this is a standard for admissible evidence, *not* for discovery responses. Discovery responses may be hearsay. *Smith v. Superior Court In and For San Joaquin County* (1961) 189 Cal.App.2d 6, 12 ("The fact that the answer may compel the defendant to give hearsay evidence is no objection to an interrogatory.").

Having reviewed the responses in issue, the court finds the responses to form interrogatory no. 17.1 for RFA nos. 36, 39, and 8 sufficient. As to the responses for RFA nos. 42-44, the internal inconsistency of Defendant asserting a reasonable inquiry as a basis for providing no further information at the same time it asserts its investigation is not complete makes the responses insufficient. Either Defendant has made a reasonable inquiry or it has not and

		its response should so state. Defendant cannot hedge its bets by, at the same time, asserting its investigation is not complete
4.	2023-1357031 Murata vs. South Coast Real Estate & Property Management, Inc.	Defendant South Coast Real Estate & Property Management, Inc.'s Motion to Dismiss Plaintiffs' Complaint is denied. Plaintiffs move, under CCP section 389(b), for an order dismissing the "First Amended Complaint" for failure to join and serve and indispensable party. CCP section 389 governs compulsory joinder and the indispensable party doctrine (Code Civ. Proc., § 389). Under section 389, subdivision (a), a person <i>must</i> be joined as a party if, in their absence, complete relief cannot be accorded among those already parties, or if the person claims an interest relating to the subject of the action and is so situated that disposition in their absence may as a practical matter impair or impede their ability to protect that interest, or leave existing parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations. "If he has not been so joined, the court shall order that he be made a party." (Code Civ. Proc., § 389, subd. (a)). If such a person <i>cannot</i> be joined, then the court must determine "whether in equity and good conscience" the action should proceed or be dismissed without prejudice. The court should consider factors such as prejudice to absent parties, whether prejudice can be lessened, adequacy of judgment, and whether the plaintiff will have an adequate remedy if the action is dismissed (Code Civ. Proc., § 389, subd. (b)). A party objecting to a "defect or misjoinder of parties" may do so under CCP section 430.10, subdivision (d), "by demurrer or answer." (Code Civ. Proc., § 430.10, subd. (d).) If that party "fails to object to the pleading, either by demurrer or answer, that party is deemed to have waived the objection unless it is an objection that the court has no jurisdiction of the subject of the cause of action alleged in the pleading or an objection that the pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.80, subd. (a).) "[T]he 'failure to join 'indispensable' parties does not deprive a court of the power to make a legally binding adjudication between the parties properly before it"; in other words, it is "not 'a jurisdictional defect' in the fundamental sense." (<i>Doe v. Regents of University of California</i> (2022) 80 Cal.App.5th 282, 305 [internal citations omitted].) This is because an indispensable party "is not bound by a judgment in an action in which he was not joined." (<i>Ibid.</i>) "It is for reasons of equity and convenience, and not because it is without power to proceed, that the court should not proceed with a case where it determines that an "indispensable" party is absent and cannot be joined." (<i>Sierra Club, Inc. v. California Coastal Com.</i> (1979) 95 Cal.App.3d 495, 500.)